

ACKNOWLEDGEMENT OF DEBT (AOD) AGREEMENT

This Acknowledgement of Debt Agreement ("the Agreement") is entered into between:

Gemini Moon Trading 7 (Pty) Ltd t/a XL Nexus Travel ("the Company")
and

(Employee Full Name & ID Number) ("the Employee").

Employee Physical Address: _____

C1. PURPOSE AND CONTEXT

C1.1 This Agreement regulates the repayment of a financial loss incurred by the Company arising from an error, omission, negligence, or non-compliance with required procedures attributable to the Employee, including but not limited to Airline Debit Memos ("ADM"), supplier penalties, reissue costs, or booking-related losses.

C1.2 This Agreement does not constitute disciplinary action. It regulates the financial recovery of a quantified loss.

C1.3 The Employee consents to the Company processing their personal information for purposes of administering this Agreement, enforcing its terms, and pursuing lawful recovery where necessary, in accordance with applicable legislation, including the Protection of Personal Information Act.

C1.4 This Agreement constitutes the entire agreement between the parties regarding the subject matter herein and supersedes any prior discussions, representations, or understandings, whether written or oral.

C1.5 No amendment, variation, or waiver of any provision of this Agreement shall be valid unless recorded in writing and signed by both parties.

C1.6 Where this Agreement relates to the use of a Company vehicle or Company-arranged vehicle, the Employee acknowledges that should any damage, loss, insurance excess, traffic fines, or related costs arise over and above the agreed loan cost during the period of use, such additional costs will be for the Employee's personal account. Upon quantification of any such costs, the Employee agrees to enter into a supplementary Acknowledgement of Debt in respect of those amounts, and the recovery provisions of this Agreement shall apply accordingly.

C2. NATURE OF THE LOSS

C2.1 The Company notes that a financial loss has arisen in the amount of:

Total Amount Owed: R _____

C2.2 Description of incident, booking reference, ADM number or related documentation:

C2.3 Supporting documentation has been made available to the Employee.

C3. RIGHT TO DISPUTE

C3.1 Prior to signing this Agreement, the Employee has been afforded a reasonable opportunity (14 days since receipt) to: _____

- a) review the supporting documentation;
- b) dispute the basis of the alleged loss;
- c) provide mitigating information; and
- d) raise any procedural or factual concerns.

C3.2 By signing this Agreement, the Employee acknowledges: _____

- a) that the debt is due and payable;
- b) that the amount has been explained; and
- c) that the Employee accepts responsibility for repayment.

C3.3 Once signed, the repayment terms may not be renegotiated except in exceptional circumstances supported by a written motivation and approved in writing by the Directors. _____

C4. REPAYMENT TERMS

C4.1 The Employee agrees to repay the debt as follows (select applicable option):

☐ Monthly payroll deduction of R _____
Commencing on _____

☐ Lump sum payment by _____

C4.2 No AOD repayment period shall exceed six (6) consecutive months, unless exceptional circumstances are approved in writing by the Directors. _____

C4.3 The Employee hereby provides written consent in terms of section 34 of the Basic Conditions of Employment Act for the deduction of the agreed repayment amounts from salary. _____

C4.4 Deductions shall be structured so as not to reduce remuneration below statutory thresholds or create unlawful deduction conditions. _____

C4.5 The repayment of debt is on a no-interest basis. _____

C4.6 A certificate signed by a Director or authorised Finance representative of the Company reflecting the amount outstanding shall constitute prima facie proof of the indebtedness and the amount due, unless the contrary is proven. _____

C4.7 The Employee acknowledges that the debt recorded in this Agreement constitutes a valid, liquid, and enforceable obligation. _____

C5. INCENTIVE SET-OFF RULE

C5.1 Where the Employee qualifies for any discretionary incentive, bonus, profit share, or similar performance-based payment while an outstanding AOD balance exists, the Company may apply up to fifty percent (50%) of such payment toward the outstanding debt. _____

C5.2 The allocation of incentive set-off shall be applied to the oldest outstanding debt first, in accordance with Company policy. _____

C5.3 The Employee acknowledges and consents to such allocation, subject to lawful deduction requirements. _____

C6. FAILURE TO PAY

C6.1 The Employee shall be in default if:

- a) the Employee resigns prior to settlement;
- b) deductions cannot be processed due to insufficient remuneration;
- c) the Employee withdraws consent unlawfully; or
- d) any payment is missed without lawful reason.

C6.2 Upon default, the outstanding balance shall become immediately due and payable.

C7. TERMINATION OF EMPLOYMENT

C7.1 Upon resignation or termination of employment, any outstanding balance becomes immediately due. _____

C7.2 The Employee authorises the Company to deduct any outstanding balance from final remuneration, subject to section 34 of the BCEA. _____

C7.3 Where final remuneration is insufficient to settle the debt in full, the Employee agrees to enter into a separate Settlement Agreement Upon Termination. _____

C7.4 Failure to enter into such agreement or to repay the outstanding balance may result in lawful recovery proceedings. _____

C7.5 In the event of breach or default by the Employee requiring legal or formal recovery action by the Company, the Employee shall be liable for all reasonable legal costs incurred on an attorney-and-client scale, including collection and tracing fees, to the extent permitted by law _____

C8. NO WAIVER OF RIGHTS

C8.1 Nothing in this Agreement prevents the Company from instituting disciplinary action where the conduct giving rise to the loss also constitutes misconduct.

C8.2 Nothing in this Agreement constitutes a waiver of statutory rights.

C9. DOMICILIUM AND NOTICES

C9.1 The Employee chooses the residential address and email address provided in this Agreement as their domicilium citandi et executandi for all purposes arising from this Agreement.

C9.2 Any notice or demand sent to such address or email shall be deemed to have been received:

- (a) on the date of delivery if delivered by hand;
- (b) three (3) business days after posting by registered mail; or
- (c) on the date of transmission if sent by email.

C9.3 The Employee undertakes to notify the Company in writing of any change of address or email.

C10. GOVERNING LAW

C10.1 This Agreement shall be governed by the laws of the Republic of South Africa, and the parties consent to the jurisdiction of the Magistrates Court having jurisdiction, notwithstanding that the amount claimed may exceed the normal jurisdiction of such court.

C11. ACKNOWLEDGEMENT

The Employee confirms that:

- The debt has been explained and documented; _____
- The repayment terms are understood; _____
- Written consent is provided in terms of section 34 of the BCEA; _____
- The Agreement is signed voluntarily. _____

Signed at _____ on this _____ day of _____ 20____.

For the Company:

Name: _____

Title: _____

Signature: _____

Employee:

Name: _____

Signature: _____